

2:00 PM

LINE 12

25-CIV-08327

JANE DOE, ET AL. VS. THOMAS WESTBROOK QUINBY, ET AL.

JANE DOE

AUDREY A. SMITH

THOMAS WESTBROOK QUINBY

PETITION FOR APPROVAL OF COMPROMISE OF MINOR'S CLAIM

TENTATIVE RULING:

Petitioner and counsel are to APPEAR. Zoom appearances are allowed. The court requires appearance for approval of minor's compromises. However, due to the sensitive nature of this case, the court will endeavor to call the matter last and close the courtroom and petitioner should keep the camera off during the entire hearing.

Counsel is to explain where the funds will be deposited. It may be in the petition, but the court did not see it.

The court has reviewed the sealed petition and in exercising its discretion after reviewing all the circumstances, finds that the settlement amount reasonable based upon the circumstances of the case and the need to resolve this case as soon as possible so that the minor does not have to go through further litigation.

The court also finds requested attorneys' fees and costs are reasonable. Counsel is only requesting a 25% contingency, which is lower than the standard contingency. (See *Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 506 ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Cotchett, Pitre & McCarthy v. Universal Paragon Corp.* (2010) 187 Cal.App.4th 1405, 1421 [noting the arbitrator found that typical contingency for all cases is 33 to 40 percent].) The court has reviewed the factors set forth in California Rule of Court 7.955(b) in making this conclusion. The court finds that the costs are also reasonable.

2:00 PM

LINE 13

25-CIV-08880 JOYCE TURCHETTI VS. AKIVA NIAMEHR, LLP

JOYCE TURCHETTI
LAW OFFICES OF AKIVA NAIMEH, LP

PRO SE
KATELYN P. DEMBOWSKI

DEFENDANT AKIVA NIAMEHR, LLP aka JACOBY AND MEYERS, LLP'S MOTION FOR AN ORDER COMPELLING ARBITRATION AND STAYING THIS LITIGATION

TENTATIVE RULING:

Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP ("Jacoby & Myers") Motion for an Order Compelling Arbitration and Staying the Litigation is GRANTED.

Defendant Jacoby & Meyers seeks to compel the claims asserted against it by Plaintiff Joyce Turchetti to binding arbitration, based on a purported agreement to arbitrate located in the retainer agreement entered into by the parties on August 12, 2024.

Agreements to arbitrate are valid, irrevocable, and enforceable. (Code Civ. Proc., § 1281.) When litigating parties have agreed to arbitrate a dispute, either party may petition or move for an order compelling the dispute to arbitration and staying judicial proceedings. California public policy favors arbitration and the enforcement of agreements to arbitrate according to their terms. (See *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

"[T]he threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (*Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 861, quoting *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) "This threshold inquiry stems from the basic premise that arbitration is consensual in nature. Thus, while California public policy favors arbitration, there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate." (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 943 [quotation marks omitted].)

A petition to compel arbitration shall be summarily heard in the manner provided by law for the making and hearing of motions. (Code of Civ. Proc., § 1290.2.) Arbitration will be ordered as long as the court finds an agreement to arbitrate exists, absent limited exceptions. (*Id.*, at § 1281.2.) "Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (*Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 413.)

Here, Jacoby & Meyers carries that burden: it submits evidence showing that Turchetti and "the law firms of Jacoby & Meyers Attorney LLP" entered into a retainer agreement that included an agreement to arbitrate "[a]ny dispute between the parties to this Agreement regarding the construction, application or performance of any services under this Agreement, and any claim
